IN THE DISTRICT COURT 'A' HELD AT KOFORIDUA ON 10TH SEPTEMBER,2025 BEFORE HER WORSHIP NANA AMA DABBAH FYNN NKANSAH(MRS)

1. **ALEXANDER ADU**
2. **MARGARET KWAA**

SUING AS ADMINISTRATOR AND
BENEFICIARY OF THE ESTATE OF
JOHN ASOMANING
H/NO. D127/A11 DENSUAGYA RDKDUA

VRS

NANA BOAKYE YIADOM
KDUA

JUDGMENT

This case commenced with the issuance of a writ of summons and statement of claim by the Plaintiffs seeking the following reliefs against the Defendant;

1. Declaration of title to all that piece or parcel of land situate, lying and being at Sector 13 Block C Plot No. 175 Koforidua in the New Juaben Municipality and bounded on all sides by road measuring approximately 0.27 acres.

2. Recovery of possession

3. General damages for trespass

4. Perpetual injunction restraining the defendant, his agents, workmen, personal representatives or assigns from interfering with Plaintiffs' land or doing anything whatsoever on the said land pending the final determination of this action.

PLAINTIFF'S CASE

The Plaintiffs sue in their respective capacities as administrator and executor of the estate of the late John Asomaning Kwaa. It is Plaintiffs case that the late John Asomaning Kwaa, somewhere in the year 2000 purchased the land in dispute from one Samuel Doe acting as the head and lawful representative of Doe family of Koforidua to which a deed of conveyance was executed. Plaintiffs aver that subsequent to the purchase, the deceased went into peaceful possession and intended to develop same until his demise in August 2014. That just before instituting this action, Plaintiffs claim they saw that Defendant was developing the land and would not discontinue this trespass despite several warnings hence this suit.

DEFENDANT'S CASE

The Defendant denies the testimony of the Plaintiffs and avers that he is the son of the late Opanyin Kwabena Nimo and it is he who sold 3 plots of his land to him in the year 1992. That two of the plots were later affected by the construction of the road which caused the twin plots to be divided into two. That his plot is defined as Plot No. 182 to which he has a lease from the Lands Commission to that effect.

LAW ON THE STANDARD OF PROOF.

The ***"Standard of Proof"*** in civil matters inclusive of land matters is unambiguously stated in the **EVIDENCE ACT, 1975 (NRCD 323)** to be ***"proof on the preponderance of probabilities"***. It is settled that a party who asserts the occurrence and/or existence of a state of fact has the burden of proof on that assertion and must adduce enough evidence to avoid a ruling against him/her on that matter.
Section 12 and 14 of the Evidence Act provides thus;

12. Proof by a preponderance of the probabilities

1) Except as otherwise provided by law, the burden of persuasion requires proof by a preponderance of the probabilities.

"Preponderance of the probabilities" *means that degree of certainty of belief in the mind of the tribunal of fact or the Court by which it is convinced that the existence of a fact is more probable than its non-existence.*

14. Allocation of burden of persuasion

Except as otherwise provided by law, unless it is shifted a party has the burden of persuasion as to each fact the existence or non-existence of which is essential to the claim or defence that party is asserting.

On the authority of **ABBEY VRS. ANTWI (2010) SCGLR** 16 at holding 2 the Honorable Court held that:

> ***"It is trite that where a party makes an assertion capable of proof in a certain way e.g. by producing documents, description of things or references to other facts, instances or circumstances and his averment is denied, he does not prove it by merely going into the witness box and repeating that averment on oath, or***

having it repeated by his witness. He proves it by producing other evidence of facts and circumstances, from which the court can be satisfied that what he avers is true."

See also: SUMAILA BIEBEL v ADAMU DRAMANI (2012) SCGLR

From the facts as cited above, the court shall determine this case on the sole issue of whether the Plaintiffs are entitled to their reliefs.

The Plaintiffs reliefs are basically for the court to declare title of Sector 13 Block C Plot No. 175 Koforidua in their favour together with all the ancillary reliefs.

In his book, **LAND LAW, PRACTICE AND CONVEYANCING, 3rd edition, at page 188-189**, the learned JUSTICE SIR DENNIS DOMINIC ADJEI writes thus;

The law is that a plaintiff who institutes an action for a declaration of title must positively prove the identity of his land else his action must fail. Where the identity of the disputed land is not certain, the action must fail and the relief shall not be granted to avoid a situation where a plaintiff may use the judgment to extend the boundaries of his land.

In their seminal work, **GHANA LAND LAW AND CONVEYANCING, 2nd edition, pages 99-104**, the esteemed BJ DA ROCHA and CHK LODOH state that:

"When a person's title to land is challenged, what a court is called upon to decide is which of the contending parties has a better title to the land. The factors to consider are ***possession****,* ***documentary title*** *and* ***oral grant at customary law."***

In proceeding, the Court in determining the claim for declaration of title shall consider these factors: identity of the land, possession, documentary title and oral grant under customary law.

Regarding the identity of land, as stated earlier, failure of same by the Plaintiff shall warrant Plaintiff's claim to fail. This has been the holding of numerous judgments including;

ANANE and OTHERS v DONKOR and ANOTHER (CONSOLIDATED) (1965) GLR 188

JASS COMPANY LIMITED v APPAU and Another (2009) SCGLR 265.

In the case of **AGBOSU and OTHERS v KOTEY and OTHERS(2003-2004) 1 GLR 685,** it was held that where a party sues for declaration of title and the other party admits in his pleadings, the Plaintiff would not be required to strictly prove the identity of the land since it is not in issue.

Indeed, throughout the trial, the Plaintiffs took steps to lay bare their root of title through the successive purchasers of this land in dispute though Defendant denied *in toto*.

On the other hand, the Defendant who also asserted that the land was sold to him by his father Opanyin Nimo, exhibited to his Witness statement a lease. However, this lease is in respect of Plot 182, which is not the subject matter of this suit. Apart from this document, he did not produce any other documentary evidence in support of his claims. Be that as it may, it is trite that a Plaintiff must prove his case on his own strength and not on the weakness of the Defendant's case.

Considering the totality of the evidence led by each party, the court appointed the Survey and Mapping Division of the Lands Commission, Koforidua to draw a composite plan in respect of the land in dispute. A copy of the composite plan was duly prepared and same was admitted into evidence as Exhibit CE1 without objection.

On Exhibit CE1, the land being claimed by the parties on ground is at the same place. However, when the Plaintiff's Plot No 175 as shown on his site plan was superimposed on ground, it landed at a different place. It is also the same with Defendant's Plot 182 which landed, after the superimposition, landed at a totally different place from what he is claiming on ground.

This means that the Plaintiffs have not been able to identify the land to which they are laying claim and the authorities as discussed above are clear that a person who cannot identify his land cannot lay claim to it.

Thus, this court is unable to declare title of Sector 13 Block C Plot No. 175 Koforidua in favour of the Plaintiffs. Consequently, all the other reliefs are also unsuccessful, and the suit is accordingly dismissed. There shall be no order as to cost.